

Court No. - 40

Case :- WRIT - C No. - 30238 of 2022

Petitioner :- Sangeeta

Respondent :- U.P. Power Corporation Ltd And 2 Others

Counsel for Petitioner :- A.P. Singh

Counsel for Respondent :- Krishna Agarawal, Udit Chandra

Hon'ble Siddhartha Varma, J.

Hon'ble Ajit Singh, J.

When the case was taken up in the revised call, no one has appeared on behalf of the petitioner, though Sri Udit Chandra, learned counsel for the respondent nos. 2 and 3 is present.

List this case as fresh on 25.11.2022.

Order Date :- 9.11.2022

Faridul

Court No. - 3

Case :- WRIT - C No. - 30238 of 2022

Petitioner :- Sangeeta

Respondent :- U.P. Power Corporation Ltd And 2 Others

Counsel for Petitioner :- A.P. Singh

Counsel for Respondent :- Krishna Agarawal, Udit Chandra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner and Shri Udit Chandra, learned counsel for the respondents.

This writ petition has been filed praying for the following relief:

"i. To issue a writ, order or direction in the nature of mandamus commanding and directing the Respondent No. 3 i.e. Executive Engineer - Vidyut Vitaran Khand-III, Kajjarpura Varanasi to ensure the electricity connection upon the Plot No. 866 of revenue Village Kotwa, Tehsil sadar, District Varanasi, without payment of estimated expenses of Rs. 33,888/-, upon which a residential house has been established as early as possible within prescribed period fixed by this Hon'ble Court."

We find that the petitioner has remedy under Para 7.10 of the U.P. Electricity Supply Code, 2005, therefore, without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit an application before the Consumer Redressal Forum in terms of Clause 7.10 of the U.P. Electricity Supply Code, 2005 within three weeks from today along with a certified copy of this order. In the event, such an application is submitted within stipulated period, it shall be decided by the Competent Authority in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

Order Date :- 27.1.2023

A. V. Singh